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On motion by Councilor Edgar S. Cabanlas, severally seconded by the members present, be it

Resolved, as the City Council (Sangguniang Panlungsod) hereby resolves, to approve on final reading the following:

ORDINANCE NO. 15378-2026

AN ORDINANCE AN ORDINANCE REQUIRING THE USE OF DULY CALIBRATED OR VERIFIED DIGITAL OR ELECTRONIC WEIGHING SCALES BY ALL VENDORS IN PUBLIC AND PRIVATE MARKETS AND OTHER BUSINESS ESTABLISHMENTS FOR RETAIL CONSUMER TRANSACTIONS INVOLVING WEIGHT MEASUREMENTS, IMPOSING PENALTIES FOR VIOLATIONS THEREOF, AND FOR OTHER PURPOSES

Whereas, Section 9, Article XVI of the 1987 Philippine Constitution underscores that the State shall protect consumers from trade malpractices and substandard or hazardous products;

Whereas, Republic Act No. 7394 otherwise known as the Consumer Act of the Philippines, underlines the policy of the government to protect the interests of the consumers, promote their general welfare, and establish standards of conduct for business and industry;

Whereas, Chapter II, Title III of the Consumer Act provides for the regulation of practices relative to weights and measures to protect consumers against deceptive, unfair, and unconscionable sales acts and practices;

Whereas, the Local Government Unit of Cagayan de Oro City comprehends the need to complement Republic Act No. 11706, or an Act providing for the establishment of Timbangan ng Bayan Centers in public and private markets;

Whereas, the government and the private sector recognize the advancement in engineering, science, and technology to experience accurate, precise, and easier-to-read weight measurements;

Whereas, the Local Government Unit of Cagayan de Oro City aims to create and foster an environment where vendors uphold fair and honest business practices through the utilization of duly calibrated or verified digital or electronic weighing scales, and to ensure that consumers get the best value for their hard-earned money;

Whereas, the Sangguniang Panlungsod of Cagayan de Oro has the power to regulate the inspection, weighing, and measuring of articles of commerce as per Section 458, 2 (xv) of Republic Act No. 7160, or the Local Government Code of 1991.

NOW, THEREFORE:

BE IT ORDAINED by the 21st City Council (Sangguniang Panlungsod) in session that:

SECTION 1. Title – This Ordinance shall also be known as the **"Digital Weighing Scale Ordinance of Cagayan de Oro City of 2026."**

SECTION 2. Definition of Terms – For purposes of this Ordinance, the following terms shall be defined as follows:

- (a) **Accuracy** – refers to the degree to which a weighing scale's indicated weight is close to the true or reference weight, such that any deviation does not exceed the permissible error of $\pm 0.3\%$ of the applied load during monitoring and inspection.
- (b) **Calibration by DOST** - refers to the process conducted by the Department of Science and Technology (DOST), through its accredited laboratories or authorized personnel, of testing, verifying, and adjusting weighing scales and other measuring instruments to ensure their accuracy and conformity with national or international measurement standards. It involves a comparison between a certified measurement (the standard) and the measurement obtained using the instrument to determine its degree of accuracy. This calibration serves as the basis for the issuance of calibration seals or certificates, indicating that the instruments have been



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inspected and found compliant with the prescribed standards of accuracy.

- (c) **Calibration or Verification Seal** – a device, wire, lead, placard, or label that, when removed or tampered with, and by virtue of its design and material, clearly indicates tampering. Its purpose is to ensure the integrity of the calibration or Verification process. This includes a certification seal affixed to the weighing scale which indicates that the unit had undergone a calibration or verification process by a legitimate calibration laboratory of the DOST, the Philippine Accreditation Board of the Department of Trade and Industry or the City Government of Cagayan de Oro. It also includes the seal used by the City Government after conducting testing of the accuracy of weighing scales, as provided in Section 5 hereof.
- (d) **Confiscation Receipt (CR)** – refers to the written acknowledgment issued by the inspecting or confiscating officer to the owner, operator, or vendor or of a business establishment upon the confiscation of any defective, uncalibrated or unverified, tampered, unauthorized, or non-digital weighing scale. The CR serves as proof of seizure and contains details such as the name of user or of the establishment, address, date and time of inspection, reason for confiscation, and the signatures of both the inspecting officer and the owner or representative.
- (e) **Consumer Goods** – are retail products purchased by individual consumers for consumption or personal use, not for resale or further production. These are finished products like food, clothing, electronics, and furniture, which is used or consumed by the buyer.
- (f) **Consumer Transaction** – refers to any business-to-consumer (B2C) sale, purchase, exchange, or transfer of consumer goods in which the price or quantity is determined wholly or partly on the basis of weight or measurement using a weighing scale. It applies only to retail transactions between vendors and end-user consumers and expressly excludes bulk, wholesale, or business-to-business (B2B) transactions.
- (g) **Defective Weighing Scale** – refers to a weighing scale that does not provide accurate measurements, including any scale whose readings exceed the permissible error of $\pm 0.3\%$ of the applied load during monitoring and inspection.
- (h) **Digital Weighing Scale** – a device that measures the weight or mass of an object and displays the result on a digital screen. It works by using sensors to convert the force of an object's weight into a digital readout in units like grams or kilograms. Also known as an electronic weighing scale.
- (i) **Inspection** – refers to the process conducted by the City Government to determine an establishment's compliance with this Ordinance by measuring, examining, testing, or gauging various characteristics of a weighing scale and comparing the results with prescribed standards. Inspection aims to verify that weighing scales are properly calibrated or verified and sealed, accurately functioning within the permissible error, correctly installed, and compliant with all minimum specifications. During inspection, an Ordinance Violation Receipt (OVR) and/or Citation Receipt (CR) may be issued if non-compliance is found.
- (j) **Metric System** – a decimal-based system of measurement that uses the meter, kilogram, and liter as its base units for length, mass, and volume, respectively.
- (k) **Ordinance Violation Receipt (OVR)** – refers to the citation ticket or written notice issued to an owner, operator, or vendor found in violation of this Ordinance. The OVR serves as the legal basis for the imposition of applicable administrative fines or penalties and may be issued by the City Treasurer's Office or any duly deputized or authorized representative under this Ordinance.
- (l) **PAB Mark** – a certification seal affixed to the weighing scale which indicates that the unit had undergone a calibration process from a legitimate calibration laboratory duly accredited by the Department of Trade and Industry's Philippine Accreditation Bureau or PAB.
- (m) **Permissible Error** – refers to the maximum allowable deviation of a weighing scale's indicated weight from the true or reference weight during monitoring and inspection, which shall not exceed $\pm 0.3\%$ of the applied load.



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- (n) **Standard Test Weights** – refers to calibrated reference weights with known and certified mass values, used in the monitoring, inspection, calibration, and verification of weighing scales to determine their accuracy. These weights shall be calibrated by the Department of Science and Technology (DOST) or by a laboratory duly accredited by the Philippine Accreditation Bureau (PAB), and shall be supported by valid calibration certificates.
- (o) **Talipapa or Tiyangge** – a makeshift barangay-based small marketplace where consumer goods are sold and bought.
- (p) **Tampering of Weighing Scales** – refers to any act of altering, adjusting, modifying, bypassing, disabling, or interfering with any part, component, or function of a weighing scale, including its calibration or verification seals, in a manner that affects or is intended to affect the accuracy, reliability, or integrity of its measurements, or that results in misleading weight readings to the prejudice of consumers.
- (q) **Timbangan ng Bayan** – weighing scales installed in public markets or other publicly-accessible area for use by the public as contemplated in Republic Act No. 11706.
- (r) **Unauthorized Weighing Scale** – refers to any weighing device that is non-digital or non-electronic, or any digital/electronic weighing scale that:
 - 1. has no valid calibration or verification seal beyond the prescribed calibration or verification period;
 - 2. has been purchased and used for more than three (3) months without undergoing calibration or verification and sealing by the authorized office; or
 - 3. has been tampered with, altered, or found to be fraudulent in any way that affects its accuracy or integrity.
- (s) **Verification by the City Government** – refers to the process conducted by the City Government, through its authorized personnel, of testing, verifying, and adjusting weighing scales and other measuring instruments to ensure their accuracy and compliance with prescribed standards.

SECTION 3. Scope – This Ordinance shall apply only to retail consumer transactions (business-to-consumer), specifically to establishments within the City of Cagayan de Oro that sell goods or commodities by weight directly to end-user consumers using digital or electronic weighing scales.

This Ordinance covers, but is not limited to, the following:

- a) Public dry and wet markets;
- b) Barangay-based small marketplaces or "*tiyangge*";
- c) Privately-operated dry and wet markets;
- d) Supermarkets, grocery stores, and convenience stores;
- e) Retail consumer transactions of hardware stores;
- f) Mobile or ambulant vendors who sell goods by weight directly to consumers; and
- g) other retail establishments selling consumer goods by weight.

For clarity, this Ordinance does not apply to wholesale, bulk, business-to-business (B2B), or industrial trade transactions. It applies exclusively to retail consumer transactions conducted directly with end-user consumers.

SECTION 4. Minimum Specifications of the Digital or Electronic Weighing Scale – Only digital or electronic weighing scales shall be used for all retail consumer transactions covered by this Ordinance. The use of mechanical, analog, spring-type, or any non-digital weighing device is strictly prohibited within the jurisdiction of the City of Cagayan de Oro.

The following are the minimum specifications or requirements that shall be complied with in the usage of a digital weighing scale for consumer transactions:



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Digital Weighing Scale

- a. Measuring Units – Metric System, kilograms or grams
- b. Capacity – Minimum of 30 kilograms, or 30 kg
- c. Scale Division – Maximum of 5 grams, or 0.005 kg
- d. Type – ACS digital weighing scale or equivalent
- e. Display – LED Screen / 0.000 gm (capable of displaying weight in kilograms/grams consistent with the 5 g division)
- f. Rated Voltage/Frequency – 220 V / 60 Hz

SECTION 5. Annual Mandatory Calibration or Verification and Sealing of Digital Weighing Scales.

(a) Mandatory Annual Calibration or Verification

All establishments, stores, or vendors using digital weighing scales for retail consumer transactions shall have their weighing scales calibrated or verified at least once every year to ensure accuracy, reliability, and fairness in weight measurements.

For this purpose, an annual compliance period is hereby established from December 1 to January 30 of each year, within which all required calibrations or verifications shall be completed, unless otherwise adjusted by the City Treasurer's Office through public notice. The City Council may, through a duly approved resolution, extend the compliance period as circumstance may warrant.

Vendors are required to bring and present their weighing scales to the City Treasurer's Office or its duly deputized officers, such as the City Economic Enterprises and Business Development Administration Office (CEEEDA) or the punong barangay in the location of the business, who are hereby deputized to conduct verification of weighing scales within their respective jurisdictions in coordination with the City Treasurer's Office.

Upon written request of the vendors' association or the barangay, the City Treasurer's Office may schedule on-site verification of weighing scales at the specific area of business, subject to the availability of personnel and payment of applicable fees.

For purposes of compliance with the annual mandatory requirement under this Ordinance, vendors may choose any of the following modes:

Calibration may be performed:

- 1) Verification by the City Government – Verification may be conducted by the City Treasurer or a duly designated verification officer, or by duly deputized officers such as CEEEDA or the punong barangay in the location of the business. A verification fee of Two Hundred Fifty Pesos (P240.00) per weighing scale shall be collected by the City Treasurer's Office.

Collection of the verification fee shall be done only once per weighing scale for each calendar year in relation to the annual mandatory calibration or verification requirement. Any subsequent verification or re-verification of the same weighing scale within the same calendar year, when voluntarily requested by the establishment for validation purposes, shall not be subject to additional verification fees.

After successful verification of the weighing scale, the City Treasurer or its deputized officers—including those from CEEEDA or the punong barangay in the location of the business—shall affix the official verification seal on the weighing scale to indicate that the scale has been verified, found compliant, and is now authorized for use in the market.

For weighing scales verified by the CEEEDA or the punong barangay, CEEEDA or the punong barangay shall issue a Certificate of Compliance as proof of the establishment's compliance with the mandatory verification requirement. This



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Certificate of Compliance shall be presented by the establishment to the City Treasurer's Office for the assessment and settlement of the applicable verification fees.

- 2) Calibration by the Department of Science and Technology (DOST) – Calibration may be conducted by the Department of Science and Technology (DOST), through its accredited laboratories or authorized personnel, or by any laboratory duly accredited by the Philippine Accreditation Bureau (PAB), subject to the prescribed calibration fees set by DOST or the accredited laboratory.

Calibration conducted by the Department of Science and Technology (DOST) or by any laboratory duly accredited by the Philippine Accreditation Bureau (PAB) shall be recognized as valid compliance with this Ordinance, provided that the corresponding calibration certificate and/or seal remains valid within the prescribed period of one (1) year from the date of the last calibration or verification of the weighing scale. In such cases, the vendor shall only be required to present the valid calibration certificate and/or seal to the City Treasurer's Office or its duly deputized officers for recording and monitoring purposes, without the need for a separate verification, unless the weighing scale is selected for random inspection under this Ordinance.

In cases where the results of calibration issued by the Department of Science and Technology (DOST) or any Philippine Accreditation Bureau (PAB)-accredited laboratory conflict with the findings of verification conducted by the City Government through the City Treasurer's Office (CTO) or its duly deputized officers, the results of the City Government's verification shall prevail for purposes of enforcement, compliance evaluation, and the imposition of penalties under this Ordinance.

DOST or PAB calibration certificates shall be recognized as proof of prior compliance; however, they shall not preclude the City Government from conducting independent verification or from issuing appropriate enforcement actions when discrepancies, defects, or violations are found.

(b) Calibration or Verification of Newly Purchased Scales

Newly purchased digital weighing scales must undergo initial calibration or verification within three (3) months from the date of purchase as indicated in the official receipt. For scales bearing a PAB mark, initial calibration or verification shall be performed six (6) months from the date of purchase.

Interaction with Annual Compliance:

The initial calibration or verification conducted within the three (3)- or six (6) month period shall be recognized as valid compliance until the next annual calibration or verification deadline of January 20. Thereafter, the weighing scale shall follow the regular annual calibration or verification schedule.

(c) Voluntary Calibration or Verification

Establishments may voluntarily submit their digital weighing scales for calibration or verification either by the City Treasurer's Office or its duly deputized officers, such as the City Economic Enterprises and Business Development Administration Office of the Punong Barangay in the location of the business, or by DOST-accredited laboratories. Any calibration certificate issued by DOST or PAB-accredited laboratories shall be accepted as proof of compliance, provided it remains valid and issued within the prescribed one-year period from the date of the previous calibration or verification.

(d) Calibration Seal by DOST or Verification Seal by the City Government

1. A calibration or verification seal or certificate shall be affixed only after a weighing scale successfully passes the calibration or verification process.
2. The seal must be placed so that any attempt to tamper with the scale will visibly damage or break the seal. A broken, damaged, or missing seal constitutes evidence of



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tampering.

3. Each calibration or verification seal shall include:
 - i) Date of calibration or verification;
 - ii) Date of next required calibration or verification; and
 - iii) Name and signature of the City Treasurer, duly designated calibration or verification officer, or accredited DOST personnel.
4. Supremacy of City Verification: In the event of conflicting results between a DOST calibration seal and a City verification seal, the City Government's verification shall supersede the DOST calibration. The City's seal or certificate shall govern compliance under this Ordinance.
5. The official seal of the City of Cagayan de Oro shall be depicted on every calibration or verification seal issued by the City Government.

(e) Placement and Stability Requirements

To ensure accurate readings, all digital weighing scales must be properly installed and maintained. This includes:

1. Placing the scale on a flat, level, and stable surface or securely mounting it in a fixed location;
2. Preventing unnecessary movement, tilting, or vibration during use; and
3. Maintaining appropriate power sources, e.g., fully charged or functional batteries for portable scales or directly connecting the weighing scale to the electricity provided by the local distribution utility.

Stability, leveling, and proper mounting shall be assessed by the inspecting personnel of the City Treasurer's Office or deputized officers. Any deviation affecting accuracy shall constitute a violation if not corrected immediately.

(f) Responsibility of Establishments

Each establishment or vendor is responsible for ensuring the weighing scale is regularly and properly calibrated or verified, accurate, stable, and correctly placed at all times. Failure to maintain these standards may result in confiscation, fines, or other penalties as provided in Section 8 of this Ordinance.

(g) Calibration of Standard Test Weights Used in the Verification of Weighing Scales

The City Treasurer's Office or its duly deputized officers, such as the City Economic Enterprises and Business Development Administration Office or the punong barangay in the location of the business, shall use calibrated standard test weights in the verification of weighing scales.

Only standard test weights that have been properly calibrated by the Department of Science and Technology (DOST) or by a laboratory duly accredited by the Philippine Accreditation Bureau (PAB) shall be used for the calibration and verification of weighing scales under this Ordinance. Standard test weights utilized by the City Treasurer's Office and deputized personnel shall themselves be calibrated at least once every year by DOST or a PAB-accredited laboratory. The City Treasurer's Office or its duly deputized officers shall maintain records of the calibration certificates of all standard test weights and shall make such records available for audit and verification upon request.

(h) Training and Capacity Building for Deputized Personnel Conducting Verification of Weighing Scales

The City Treasurer's Office or its duly deputized officers, such as the City Economic Enterprises and Business Development Administration Office or the punong barangay in



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the location of the business, involved in the verification of weighing scales under this Ordinance shall undergo appropriate training on calibration and verification procedures, the use of standard test weights, the application of the permissible error of $\pm 0.3\%$ of the applied load, and other relevant technical standards.

Such training shall be conducted by, or in coordination with, the Department of Science and Technology (DOST) and other competent government agencies or institutions. The City Treasurer's Office shall ensure the conduct of initial training prior to the performance of deputized functions and periodic refresher trainings as may be necessary.

SECTION 6. Prohibited Acts – In accordance with the Consumer Act of the Philippines and this Ordinance, it shall be unlawful for any person, establishment, or vendor engaged in retail consumer transactions involving the retail sale of goods or commodities sold by weight or measure to commit any of the following acts. The prohibited acts listed below include, but are not limited to, the acts specifically enumerated and any acts substantially similar in nature or effect.

a. Unauthorized Seals and Marks

1. Placing, imitating, altering, or using any official calibration or verification tag, seal, sticker, mark, stamp, brand, certificate, or license without authority from the City Treasurer's Office or the duly designated calibration or verification officer;
2. Reusing, counterfeiting, or fraudulently reproducing any expired, damaged, altered, or falsified seal, tag, or certificate to make it appear that a weighing scale has been recently officially tested, calibrated, verified or sealed.

b. Tampering and Alteration of Weighing Scales

1. Tampering with, altering, or modifying any digital weighing scale or its internal components to produce inaccurate readings or defraud consumers;
2. Tampering with or removing the official calibration or verification seal affixed by the City Treasurer's Office or other authorized agencies;
3. Making any physical or electronic modification to a weighing scale that affects its accuracy, calibration, or reliability;
4. Possessing or using any weighing scale known to have been tampered with or altered.

c. Use of Unauthorized or Defective Weighing Scales

1. Using, possessing, or operating any Unauthorized Weighing Scale as defined under this Ordinance, including:
 - i) Non-digital or non-electronic weighing devices;
 - ii) Weighing scales that have not undergone the prescribed annual calibration or verification, sealing, or inspection;
 - iii) Weighing scales purchased and used for more than three (3) months without calibration or verification and sealing; or
 - iv) Weighing scales that have been tampered with, altered, or found to be fraudulent.
2. Using any Defective Weighing Scale or any weighing device that produces inaccurate readings beyond the permissible error of $\pm 0.3\%$ of the applied load, to the prejudice of consumers;
3. Using weighing scales that have not undergone the prescribed periodic calibration, sealing, or inspection as required under this Ordinance.

d. Improper Use and Placement

1. Using trays, containers, or other weighing attachments in a manner that results in shortchanging consumers;



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2. Placing weighing scales on unstable, uneven, or unbalanced platforms, or sloped surfaces that affect the accuracy of weight readings of measurements;
3. Using discharged or low-powered batteries or otherwise improper power sources that alter or reduce the accuracy of the weighing scale.

e. Fraudulent Transactions

1. Knowingly using any false, counterfeit, or fraudulent weighing scale or measure;
2. Giving short weight or measure in transactions;
3. Fraudulently misrepresenting the true weight or measure of any goods or commodities being sold or purchased;
4. Aiding, abetting, or procuring another person to commit any of the foregoing prohibited acts.

SECTION 7. Monitoring, Inspection, Confiscation and Complaints -

(a) Lead Office and Deputized Authorities

The City Treasurer's Office (CTO) shall take the lead in implementing and enforcing this Ordinance.

For this purpose, the City Treasurer may deputize the Cagayan de Oro City Price Coordinating Council (CDOCPCC), the City Economic Enterprises and Business Development Administration (CEEEDA), the punong barangay of the barangay where the business is located, and other authorized representatives or personnel of the City Government as may be designated by the City Mayor, to:

1. Conduct monitoring and inspection of digital weighing scales;
2. Receive and act upon complaints;
3. Enforce compliance with this Ordinance; and
4. Exercise authority to confiscate defective or non-compliant weighing scales.

The City Treasurer may likewise coordinate with and recognize duly accredited non-government organizations (NGOs), consumer groups, and similar civil society organizations as partners in promoting transparency and accountability in the implementation of this Ordinance, particularly in monitoring activities and public information campaigns.

Monitoring and inspection activities may be conducted at any time during regular business hours of the establishment, store, or vendor being inspected. Advance notice shall no longer be provided when immediate inspection is warranted due to verified complaints, suspected violations, or concerns for public safety and consumer protection.

(b) Objectives of Monitoring and Inspection

Monitoring and inspection activities shall aim to ensure consumer protection and fair-trade practices by verifying that all weighing scales used in commerce are:

1. Properly calibrated or verified and sealed;
2. Accurately functioning within the permissible error of $\pm 0.3\%$ of the applied load;
3. Correctly installed and securely placed; and
4. Compliant with the minimum specifications and standards prescribed under this Ordinance.

(c) Determining Accuracy Using the Permissible Error of $\pm 0.3\%$ During Monitoring and Inspection

In determining the accuracy of digital weighing scales during monitoring and inspection, a maximum permissible error of $\pm 0.3\%$ of the applied load between the indicated weight and the reference standard shall be allowed. Any deviation beyond this permissible error shall constitute



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grounds for the weighing scale to be considered inaccurate and subject to the corresponding actions and penalties under this Ordinance.

(d) Frequency and Types of Inspection

1. **Routine Inspections** — Conducted at least once every semester, or as deemed necessary by the CTO, in coordination with the CDOCPCC, CEEBDA, and other concerned city offices.
2. **Special or Unannounced Inspections** — May be undertaken anytime during regular business hours in response to verified complaints, reports of irregularities, or reasonable suspicion of violations.

These inspection activities shall include, but not be limited to:

- i) Verification of proper installation, mounting, balance, and operation of digital weighing scales;
- ii) Checking the accuracy of digital weighing scales to ensure that readings are within the permissible error of $\pm 0.3\%$ of the applied load;
- iii) Assessment of the stability and placement of weighing devices; and
- iv) Identification and confiscation of defective, tampered, uncalibrated or unverified, unauthorized, unsealed, improperly placed, unstable, or non-digital weighing instruments.

(e) Calibration of Standard Test Weights Used in the Monitoring and Inspection of Weighing Scales

The City Treasurer's Office or its duly deputized officers shall only use calibrated standard test weights in the conduct of monitoring and inspection of weighing scales.

Only standard test weights that have been properly calibrated by the Department of Science and Technology (DOST) or by a laboratory duly accredited by the Philippine Accreditation Bureau (PAB) shall be used monitoring and inspection of weighing scales under this Ordinance. Standard test weights utilized by the City Treasurer's Office and deputized personnel shall themselves be calibrated at least once every year by DOST or a PAB-accredited laboratory.

The City Treasurer's Office or its duly deputized officers shall maintain records of the calibration certificates of all standard test weights and shall make such records available for audit and verification upon request.

(f) Training and Capacity Building for Deputized Personnel Conducting Monitoring and Inspection of Weighing Scales

The City Treasurer's Office or its duly deputized officers involved in the monitoring and inspection of weighing scales under this Ordinance shall undergo appropriate training on monitoring and inspection procedures, the use of standard test weights, the application of the permissible error of $\pm 0.3\%$ of the applied load, and other relevant technical standards.

Such training shall be conducted by, or in coordination with, the Department of Science and Technology (DOST) and other competent government agencies or institutions. The City Treasurer's Office shall ensure the conduct of initial training prior to the performance of deputized functions and periodic refresher trainings as may be necessary.

(g) Authority to Confiscate and Issue Receipts

The City Treasurer, his duly authorized representatives, or any deputized personnel or office mentioned above shall be empowered to confiscate defective, tampered, uncalibrated or unverified, unauthorized, or non-digital weighing scales used in retail transactions during inspection or monitoring.

1. Confiscation Receipt (CR).



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Whenever a weighing scale is confiscated, the inspecting or confiscating officer shall issue a Confiscation Receipt (CR) to the owner, operator, or vendor concerned. The CR shall contain the following details:

- i) Name of the owner and business establishment;
- ii) Business address;
- iii) Date, time, and location of inspection;
- iv) Reason for confiscation (e.g., defective, uncalibrated or unverified, tampered, or non-digital);
- v) Name and signature of the inspecting officer; and
- vi) Signature of the owner or representative present during the inspection.

2. Ordinance Violation Receipt (OVR).

If the inspection also establishes a violation of this Ordinance, an Ordinance Violation Receipt (OVR) shall likewise be issued by the confiscating or inspecting officer, in coordination with or under the authority of the City Treasurer's Office.

The OVR shall serve as the legal basis for the imposition of applicable fines or penalties.

(h) Storage and Disposal of Confiscated Weighing Scales

The City Treasurer's Office shall provide a designated storage area for all seized, uncalibrated or unverified, tampered, defective, or non-digital weighing scales. Such items shall be properly recorded and inventoried pending their destruction.

All confiscated weighing scales shall be destroyed after one (1) month from the date of confiscation, under the supervision of the City Treasurer's Office. Representatives from the CEEBDA, CDOCPCC, the City Information Office, the Office of the City Mayor, and duly accredited NGOs or consumer organizations may be invited to witness and document the destruction to ensure transparency and accountability.

(i) Complaints Mechanism

Violations may also be determined through letter complaints filed by consumers, *customers*, or other concerned individuals.

All complaints shall be:

1. In writing and signed by the complainant; and
2. Must clearly state the complainant's name, as well as the store name and address of the establishment being reported.

Verified complaints may be filed with or endorsed to any of the following offices:

1. Office of the City Mayor (CMO);
2. City Treasurer's Office (CTO);
3. City Economic Enterprises and Business Development Administration (CEEBDA); or
4. Cagayan de Oro City Price Coordinating Council (CDOCPCC).

For this purpose, a Complaint Form shall be devised by the DTI-MOR and reproduced by the City Treasurer's Office.

Upon receipt of the complaint form, any of the following authorities — CTO, CEEBDA, CDOCPCC, or the punong barangay where the business is located – shall conduct monitoring and inspection in accordance with this Ordinance. Upon verification of the validity of the complaint, the CTO, CEEBDA, CDOCPCC, or the punong barangay shall issue the appropriate Ordinance Violation Receipt and Confiscation Receipt, as applicable.



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SECTION 8. Penalties – Prosecution under this Ordinance shall not bar prosecution under any of the consumer protection-related national legislations.

The following penalties shall be imposed for violations of the provisions of this Ordinance:

- (a) First Offense - Imposition of an administrative fine of Five Thousand Pesos (₱5,000.00) and confiscation of the weighing scale(s) found to be in violation of this Ordinance.
- (b) Second Offense - Imposition of an administrative fine of Five Thousand Pesos (₱5,000.00), confiscation of the weighing scale(s), immediate permanent revocation of the business permit, and prohibiting the violator from reapplying for a business permit, as well as the filing of appropriate criminal and/or administrative charges in accordance with existing laws, rules, and regulations.
- (c) Failure to pay any administrative fine or comply with the imposed penalty within seventy-two (72) hours from the issuance of the Ordinance Violation Receipt shall constitute a ground for suspension of the business permit until the violation is rectified and shall likewise be a ground for the filing of a criminal complaint in court.
- (d) These penalties shall be without prejudice to other applicable sanctions under national laws, such as the Weights and Measures Act, and other relevant ordinances and regulations.

SECTION 9. Education and Advocacy – The Department of Trade and Industry – Misamis Oriental Provincial Office shall spearhead the education and advocacy campaign on the utilization of digital weighing scales by the vendors and with the consuming public as well. This is in collaboration with the Local Government Unit of Cagayan de Oro, particularly the City Treasurer's Office, Cagayan de Oro City Price Coordinating Council (CDO CPCC) and City Information Office, and the Liga ng mga Barangay.

SECTION 10. Transition – Upon effectivity of this Ordinance, all retailers-vendors shall be given six (6) months within which to comply and replace their mechanical and analog weighing scales with authorized digital or electronic weighing scales. The non-digital/electronic weighing scales shall not be kept within the store premises where consumer transactions are conducted.

SECTION 11. Separability Clause – If for any reason, a certain section or provision of this Ordinance is invalid or declared unconstitutional by the court of competent jurisdiction, the other sections or provisions shall continue to be in full force and effect.

SECTION 12. Repealing Clause. - The following ordinances or portions thereof are hereby expressly repealed for being inconsistent with the provisions of this Ordinance:

1. Chapter 45: Weighing Scales, Sections 185 to 188; of Ordinance No. 4373-94 (*Codified Ordinance of Cagayan de Oro*);
2. Ordinance No. 6875-99; and
3. Ordinance No. 6876-99.

All other ordinances, resolutions, rules, and regulations, or parts thereof that are inconsistent with the provisions of this Ordinance are likewise repealed, amended, or modified accordingly.

This includes any previous issuances governing the calibration or verification, inspection, regulation, or use of weighing scales that conflict with the requirements, procedures, or penalties provided herein.

SECTION 13. Effectivity - This Ordinance shall take effect on the day of its publication in a local newspaper of general circulation and or at the end of the period of posting in conspicuous public places in the City for at least three (3) consecutive weeks, whichever occurs later.

UNANIMOUSLY APPROVED.



cagayan
de Oro
city of golden friendship



Republic of the Philippines
CITY OF CAGAYAN DE ORO
OFFICE OF THE CITY COUNCIL
www.cdeocitycouncil.com



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AUTHOR: COUNCILOR GEORGE CHRISTOPHER Q. GOKING

Present:

1 st District:	– Councilor Desiree Ann M. Dahino	– Councilor Roger G. Abaday
	– Councilor Agapito Eriberto G. Suan	– Councilor Moreno Y. Daba IV
	– Councilor George Christopher Q. Goking	– Councilor Al P. Legaspi, Sr.
	– Councilor Imee Rose P. Moreno	
2 nd District:	– Councilor Yevonna Yacine B. Emano	– Councilor Maximo T. Rodriguez III
	– Councilor Gilda O. Go	– Councilor Joyleen Mercedes L. Balaba
	– Councilor Edgar S. Cabanlas	
Ex-Officio:	– Councilor Marlo L. Tabac	– Councilor Datu Roberto P. Cabaring
	– Councilor Kenneth John D. Sacala	
<u>On Official Business:</u>	– Councilor Juancho R. Pascual	– Councilor Enrico D. Salcedo
	– Councilor Paolo Nicolo Gaane	– Councilor Yan Lam S. Lim

ENACTED this 22nd day of June 2026 in the City of Cagayan de Oro.

I hereby certify to the correctness of the foregoing Ordinance.

ARTURO S. DE SAN MIGUEL
CITY COUNCIL SECRETARY

Attested as duly enacted:

JOCELYN B. RODRIGUEZ
CITY VICE MAYOR
PRESIDING OFFICER

Approved:

Attested:

ROLANDO A. UY
CITY MAYOR

ATTY. ROY HILARIO P. RAAGAS
CITY ADMINISTRATOR